

## Danish v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · Writ - C No. 378 of 2020 · **Writ disposed; petitioner to appear before EE with objections; speaking final order; coercive action stayed seven weeks; s.127 liberty; demand revives on non-appearance.**

### HEADNOTE

A Division Bench declined to quash on merits an electricity assessment/demand of Rs 4,53,906 alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking and reasoned final order was required within four weeks; coercive action was stayed for seven weeks or until disposal of the objection, whichever earlier; and any remaining grievance was left to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance on the date fixed would automatically revive the demand.

### FACTUAL SUMMARY

Danish filed a writ seeking certiorari to quash an assessment/demand notice dated 19 November 2018 for Rs 4,53,906 issued by the Executive Engineer. He alleged that the respondents were taking coercive recovery action without giving him any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department appeared. The Division Bench heard and disposed of the petition on 9 January 2020.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::127

hearing before assessing officer and s.127 appeal after final order

#### HOLDING

Where a consumer challenges an electricity assessment/demand as issued without hearing, the Court may, without examining the quantum, decline to quash the notice, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order within a stipulated time, stay coercive action for a limited period, and leave any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear and file objections on the date fixed automatically revives the demand. ¶ 1

### PRINCIPLE TAGS

**alternative-remedy-relegation-section-127** The Court did not quash the 19.11.2018 demand on merits and left any grievance against the Executive Engineer's speaking final order to a statutory appeal under Section 127. ¶ 1

**final-assessment-order-relegates-assessee-to-section-127-appeal** After directing the Executive Engineer to pass a speaking final order on the consumer's objections, the Court expressly kept open an appeal under Section 127 of the Electricity Act, 2003 against that final order. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY AND QUANTUM OF THE 19.11.2018 ASSESSMENT/DEMAND OF RS 4,53,906

The demand was not examined on merits; it stands in abeyance pending the EE's speaking order, and revives automatically if the petitioner does not appear. ¶ 1

#### NOT DECIDED — WHETHER THE RESPONDENTS FOLLOWED THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR AFFORDED A PRE-DEMAND HEARING

The allegation was recorded but not decided; the petitioner was remitted to file objections before the Executive Engineer. ¶ 1

